



CHAPTER xxi

An Act to confirm a Provisional Order made by the Minister of Transport under the North Ormesby South Bank Normanby and Grangetown Railless Traction Act 1912 relating to Teesside Railless Traction Board trolley vehicles. [30th July 1949.]

WHEREAS under the authority of section thirty-one of the North Ormesby South Bank Normanby and Grange- 2 & 3 Geo. 5.
town Railless Traction Act 1912 (as applied to the c. lv.
Teesside Railless Traction Board by section eighty-nine of the
Middlesbrough Corporation Act 1919) the Minister of Transport 9 & 10 Geo. 5.
has made the Provisional Order set out in the schedule to this c. lviii.
Act annexed :

And whereas a Provisional Order made by the Minister of Transport under the authority of the said section is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the authority of the said section and set out in the schedule to this Act annexed be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled, and by the authority of the same as follows :—

1. The Order set out in the schedule to this Act annexed shall be and the same is hereby confirmed and all the provisions Confirmation of Order in schedule.

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thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full force and validity and the date of the same shall be the date of the passing of this Act.

Short title.

2. This Act may be cited as the *Teesside Railless Traction Board (Additional Routes) Order Confirmation Act 1949*.

SCHEDULE

TEESSIDE RAILLESS TRACTION BOARD (ADDITIONAL ROUTES)

Order authorising the Teesside Railless Traction Board to use trolley vehicles upon additional routes in the urban district of Eston in the north riding of the county of York

1. This Order may be cited as the Teesside Railless Traction Board (Additional Routes) Order 1949 and so much of the North Ormesby South Bank Normanby and Grangetown Railless Traction Act 1912 the Middlesbrough Corporation Act 1919 and the Middlesbrough Corporation Act 1933 respectively as relate to the trolley vehicle undertaking and this Order may be cited together as the Teesside Railless Traction Board Acts and Order 1912 to 1949. Short and collective titles.
23 & 24 Geo. 5. c. lxxxiii.

2. In this Order the following expressions have unless the subject or context otherwise requires the meanings hereinafter assigned to them (namely):— Interpretation.

“The Board” means the Teesside Railless Traction Board constituted by the Middlesbrough Corporation Act 1919 ;

“The borough” means the county borough of Middlesbrough ;

“The Corporation” means the mayor aldermen and burgesses of the borough ;

“The district” means the urban district of Eston in the north riding of the county of York ;

“The Council” means the Council of the district ;

“Trolley vehicles” has the meaning assigned to it by section 3 (Interpretation) of the Act of 1912 ;

“The trolley vehicle undertaking” means the trolley vehicle undertaking of the Board for the time being authorised ;

“The Act of 1912” means the North Ormesby South Bank Normanby and Grangetown Railless Traction Act 1912 ;

“The Act of 1919” and “the Act of 1933” mean respectively the Middlesbrough Corporation Act 1919 and the Middlesbrough Corporation Act 1933 ;

“The existing Acts” means the unrepealed provisions of the Act of 1912 and so much of the Act of 1919 and of the Act of 1933 respectively as relate to the trolley vehicle undertaking.

3. Subject to the provisions of this Order and of the existing Acts so far as such provisions are not inconsistent with or rendered unnecessary by the provisions of this Order the Board may use trolley vehicles. Power to use trolley vehicles.

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vehicles upon the following trolley vehicle routes in the district in addition to any routes upon which they are already authorised to use trolley vehicles (that is to say):—

Route No. 1 (1 furlong 3 chains or thereabouts in length) commencing by a junction with Route No. 1 authorised by the Act of 1912 at the junction of Whitworth Road with Bolckow Road proceeding along Bolckow Road to and terminating at its junction with Birchington Avenue ;

Route No. 2 (4 furlongs 5 chains or thereabouts in length) commencing at the termination of Route No. 1 hereinbefore described proceeding along Birchington Avenue to its junction with Broadway (forming part of road A1085) crossing Broadway and thence continuing along Birchington Avenue to and terminating at a point therein 4 chains or thereabouts north-west of the junction of Birchington Avenue with Kingsley Road.

New routes to form part of trolley vehicle undertaking.

4. Subject to the provisions of the existing Acts and of this Order the undertaking authorised by this Order shall for all purposes be deemed to form part of the trolley vehicle undertaking.

Period for commencement of trolley vehicle services.

5. If the Board shall not have commenced to use trolley vehicles upon each of the routes authorised by this Order within five years from the passing of the Act confirming this Order or such extended time as the Minister of Transport may upon the application of the Board allow the powers conferred by this Order shall so far as they relate to the use of trolley vehicles upon the route upon which the Board shall not have commenced to use trolley vehicles cease to be exercisable.

Provision of capital moneys.

6.—(1) All moneys required by the Board for purposes to which capital moneys are properly applicable shall be provided as to one equal third part thereof by the Corporation and as to two equal third parts thereof by the Council.

(2) Not less than ten days before any capital moneys are required by the Board the Board shall cause an estimate to be prepared and furnished to the Corporation and the Council of the total amount of capital moneys then required by the Board and not less than three days before the moneys mentioned in such estimate are required the Corporation and the Council shall pay to the Board one equal third part and two equal third parts respectively of those moneys and if either the Corporation or the Council fail to pay any amount so required of them within the time aforesaid the same shall be a debt due to the Board from the Corporation or the Council (as the case may be) and shall bear interest until payment at the rate of three pounds per centum per annum.

Power to Corporation to borrow.

7.—(1) Subject to the provisions of this Order the Corporation shall have power in addition to any other power of borrowing from time to time to borrow without the consent of any sanctioning authority for or in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed

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within such period as the Corporation may determine not exceeding that mentioned in the third column of the said table (namely):—

Purpose 1	Amount 2	Period 3
(a) The provision of electrical equipment and the construction of other works necessary for working trolley vehicles along the routes authorised by this Order.	£1,850	Twenty years from date or dates of borrowing.
(b) For paying so much of the costs charges and expenses referred to in the final section of this Order as are thereby required to be paid by the Corporation.	The sum requisite.	Five years from the confirmation of this Order.

(2) The provisions of Part IX of the Local Government Act 1933 23 & 24 Geo. 5. so far as they are not inconsistent with this Order shall extend and c. 51.
 apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purposes of the said Part IX.

8.—(1) Subject to the provisions of this Order the Council shall have power in addition to any other power of borrowing from time to time to borrow without the consent of any sanctioning authority for or in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within such period as the Council may determine not exceeding that mentioned in the third column of the said table (namely):—

Purpose 1	Amount 2	Period 3
(a) The provision of electrical equipment and the construction of other works necessary for working trolley vehicles along the routes authorised by this Order.	£3,700	Twenty years from date or dates of borrowing.
(b) For paying so much of the costs charges and expenses referred to in the final section of this Order as are thereby required to be paid by the Council.	The sum requisite.	Five years from the confirmation of this Order.

(2) The provisions of Part IX of the Local Government Act 1933 so far as they are not inconsistent with this Order shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purposes of the said Part IX.

Further
provisions as
to borrowing by
Corporation
and Council.

9.—(1) The Corporation and the Council or either of them may with the consent of the Minister of Transport from time to time independently of any other borrowing power borrow at interest such further sums as may be requisite for the purpose of providing any sum or sums (other than the sums mentioned in the two immediately preceding sections) which the Corporation or the Council may be required to provide under the provisions of the section of this Order of which the marginal note is "Provision of capital moneys."

(2) The provisions of Part IX of the Local Government Act 1933 so far as they are not inconsistent with this Order shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the Minister of Transport were the sanctioning authority.

(3) In order to secure the repayment of any moneys borrowed under the provisions of this Order and the payment of interest thereon the Corporation and the Council may mortgage or charge their respective shares of the surplus revenue of the undertaking of the Board and the general rate fund and general rate of the borough or the district as the case may be.

(4) The provisions of this section shall not limit the powers conferred upon the Corporation by section 322 (Power to use one form of mortgage for all purposes) of the Act of 1933.

Saving for
powers of
Treasury.
8 & 9 Geo. 6.
c. 18.
9 & 10 Geo. 6.
c. 58.

10. It shall not be lawful to exercise the powers of borrowing conferred by this Order otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945 or of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Inquiries by
Minister of
Transport.

11. The Minister of Transport may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of consents under this Order and section 290 of the Local Government Act 1933 shall apply accordingly.

Saving for
town and
country
planning.
10 & 11 Geo. 6.
c. 51.

12. This Order shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of Order.

13. All costs charges and expenses preliminary to and of and incidental to preparing applying for obtaining and confirming this Order as taxed by the taxing officer of the House of Lords or the House of Commons shall be paid in the first instance by the Board and the same shall be repaid to the Board as to one equal third part thereof by the Corporation and as to two equal third parts thereof by the Council.

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